

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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IDALIA CASTRO,

Plaintiff

- against -

Index No. _____
Purchased _____
Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

**THE CITY OF NEW YORK and
POLICE OFFICER STEVEN DOUGLAS
(Shield No. 532) of PSA 8,**

Defendants.

SUMMONS

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
November 6, 2019



JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, New York 10451
(718) 618-7509

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****-----X
IDALIA CASTRO,****Plaintiff,****Index No.
Verified Complaint****- against -****THE CITY OF NEW YORK and
POLICE OFFICER STEVEN DOUGLAS
(Shield No. 532) of PSA 8,****Defendants.
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Plaintiff, IDALIA CASTRO, by her attorney JEFFREY W. RIZZO, ESQ.,
principal, complaining of the Defendants, respectfully shows to this Court and alleges the
following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff IDALIA CASTRO
(hereinafter "MS. CASTRO") was a resident of Bronx County, City and State of New
York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW
YORK (hereinafter "CITY"), was and still is a municipal corporation organized and
existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, POLICE OFFICER STEVEN
DOUGLAS, (hereinafter "DOUGLAS") was and still is a Police Officer employed by the
Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT (hereinafter
"NYPD").

4. On and prior to August 9, 2018, DOUGLAS was employed by Defendant CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

5. The actions of DOUGLAS described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendant CITY and NYPD.

BACKGROUND

6. On or about August 9, 2018, DOUGLAS, acting as an agent, servant and employee of Defendant CITY and NYPD, without just cause or provocation, intentionally and falsely accused MS. CASTRO of having committed the crimes of P.L. § 220.16 Criminal Possession of a Controlled Substance in the Third Degree and related charges.

7. On or about August 9, 2018, Defendants, their agents, servants and/or employees, intentionally placed MS. CASTRO under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

8. On or about August 9, 2018, a criminal complaint was issued at the directive of Defendants, and a criminal action against MS. CASTRO was commenced.

9. On or about August 10, 2018, MS. CASTRO made a court appearance during which she was arraigned and released on her own recognizance.

10. MS. CASTRO was required to make approximately two more court appearances until all charges were dismissed on application of the District Attorney's Office on or about December 20, 2018.

11. As a result of the treatment of MS. CASTRO by the Defendants, MS. CASTRO was denied liberty by being falsely arrested and imprisoned for approximately eighteen (18) hours.

12. MS. CASTRO suffered emotional injuries due to the conduct of the Defendants. As a result of being falsely arrested and detained for over eighteen (18) hours, MS. CASTRO suffered humiliation, fear for her safety and other emotional distress.

PROCEDURAL POSTURE

13. On February 7, 2019, Plaintiff served a Notice of Claim in writing sworn to on her behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

14. Further, Plaintiff filed an Order to Show Cause seeking permission to file a late Notice of Claim on February 14, 2019, which was granted on March 7, 2019.

15. More than thirty days have elapsed since service of the original Notice of Claims, and Defendant CITY has failed to pay or adjust the claim.

16. This action has been commenced within one year and ninety days after the cause of actions of Plaintiff accrued.

17. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

18. Paragraphs 1-17 are incorporated by reference as fully set forth herein.

19. On August 9, 2018 at approximately 6:00 a.m., inside 1107 East 229th Street, Apt. 2A in Bronx County, Defendant DOUGLAS along with other NYPD officers wrongfully touched, grabbed, handcuffed and seized MS. CASTRO, in an excessive manner about her person, causing MS. CASTRO physical pain and mental suffering. At no time did the Defendant have legal cause to grab, handcuff, seize or touch Plaintiff. MS. CASTRO was aware of her arrest and confinement as described in paragraphs 1-17, and she did not consent to that arrest or confinement, nor was it privileged by law.

20. As a result of being falsely arrested by the Defendant, MS. CASTRO sustained multiple injuries. She was denied liberty and the ability to enjoy life for approximately eighteen (18) hours. She also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for her safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

21. Paragraphs 1-20 are incorporated by reference as though fully set forth herein.

22. The Defendants, their agents, servants and employees, arrested and confined MS. CASTRO, as described in paragraphs 1-20, and intended to confine MS. CASTRO. MS. CASTRO was conscious of her confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

23. As a result of being falsely imprisoned by the Defendants, MS. CASTRO sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for her safety.

THIRD CAUSE OF ACTION: ASSAULT AND BATTERY

24. Paragraphs 1-23 are incorporated by reference as though fully set forth herein.

25. On August 9, 2018 at approximately 6:00 a.m., inside 1107 East 229th Street, Apt. 2A in Bronx County, Defendant DOUGLAS along with other New York City police officers, wrongfully touched, grabbed, pushed, handcuffed and seized MS. CASTRO, in an excessive manner about her person, causing MS. CASTRO physical pain and mental suffering.

26. That on or about August 9, 2018, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff MS. CASTRO was intentionally touched, grabbed, pushed, assaulted, violated, humiliated and handcuffed by DOUGLAS, along with other New York City police officers who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

27. That on or about August 9, 2018, DOUGLAS, along with other New York City police officers their agents, servants and employees, acting as agents and on behalf of the CITY and NYPD within the scope of their employment, did intentionally, willfully and maliciously assault and batter MS. CASTRO, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to MS. CASTRO and their act

caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner intentionally touched the plaintiff and/or made offensive bodily contact to MS. CASTRO and caused such battery in and about her chest, body and limbs. At no time did MS. CASTRO consent to the aforesaid assault and battery.

28. While not conceding that said arrest was lawful or made upon probable cause, the aforesaid intentional assault and battery during the arrest was excessive. The excessive force used, including but not limited to the pushing, shoving and/or grabbing of MS. CASTRO, was an assault and battery beyond that which was necessary to make the arrest.

29. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, in particular DOUGLAS, along with other New York City police officers acting within the scope of their employment and authority and without any probable or reasonable cause, MS. CASTRO suffered bodily injury in and about her body and limbs and suffered conscious pain and suffering, and that she was otherwise damaged.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

30. Paragraphs 1-29 are incorporated by reference as though fully set forth herein.

31. On or about August 9, 2018, and from that time until December 20, 2018 when all charges were dismissed, the Defendants deliberately and maliciously prosecuted Plaintiff, an innocent woman without any probable cause whatsoever, by filing or causing a complaint to be filed in the Criminal Court of the City of New York, Bronx County, for

the purpose of falsely accusing Plaintiff of violations of the criminal laws of the State of New York.

32. The Defendants, their agents, servants or employees failed to take reasonable steps to stop the prosecution of Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's Office to induce prosecution of Plaintiff.

33. The commencement of these criminal proceedings under Docket No. 2018BX027570 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

34. As a result of being maliciously prosecuted by the Defendants, MS. CASTRO was deprived of her liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
November 6, 2019

Yours, etc.,



JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, NY 10451
718-618-7509

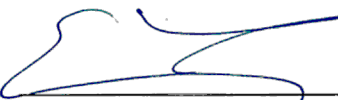
VERIFICATION

STATE OF NEW YORK)
COUNTY OF BRONX) ss:

IDALIA CASTRO, being duly sworn, deposes and states that she is the individual Claimant in the within action; that she has read the forgoing Claim and knows the contents thereof; that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief; and that as to those matters she believes them to be true.

Idalia Castro
IDALIA CASTRO

Sworn to before me, this 6th day of November, 2019.



Notary Public

ERIC D. LEVY
Notary Public, State of New York
Qualified in Kings County
Reg. #02LE6258970
My Comm. Exp. April 9, 2020

CERTIFICATION

I, JEFFREY W. RIZZO, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).



JEFFREY W. RIZZO, ESQ.